

Kadir Ahmad @ Dr. Q.A. Khan v. Madhyanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 3 April 2025 · 2025:AHC-LKO:18606-DB · WRIT - C No. - 3165 of 2025 · **Writ disposed of; petitioner directed to OP-4 under clause 6.5.**

HEADNOTE

A consumer aggrieved by a demand notice may be relegated to clause 6.5 of the U.P. Electricity Supply Code, 2005. The designated officer is to decide the demand as per law and, on a connection grievance, to consider and decide the application within two weeks.

FACTUAL SUMMARY

The petitioner approached the Lucknow Bench of the Allahabad High Court challenging a demand notice dated 9 December 2024 and also raising a grievance about an electricity connection. Counsel for Madhyanchal Vidyut Vitran Nigam Ltd. submitted that a remedy lay before opposite party no. 4 under paragraph 6.5 of the U.P. Electricity Supply Code, 2005. The Division Bench heard the parties and disposed of the writ on that footing without examining the demand or the connection on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

A writ petitioner aggrieved by a demand notice has a remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005, and may be directed to approach the designated officer, who shall decide the demand as per law; a connected grievance regarding an electricity connection may likewise be considered and decided by that officer within two weeks of an application with a certified copy of the order. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF DEMAND NOTICE DATED 09.12.2024

Court did not examine the demand on merits; relegated the petitioner to clause 6.5. ¶ 2-4

NOT DECIDED — ENTITLEMENT TO ELECTRICITY CONNECTION

No direction to grant a connection; OP-4 only to consider and decide within two weeks. ¶ 4